

Health, 595 U.S. at 48 (citation omitted).¹ This case is similar. The Attorney General’s declaration attests to having “no present intention to commence” enforcement, so MNABC lacks standing to sue, divesting the district court of subject matter jurisdiction. *Auer v. Trans Union, LLC*, 902 F.3d 873, 877 (8th Cir. 2018); see *Yeransian v. B. Riley FBR, Inc.*, 984 F.3d 633, 637 (8th Cir. 2021) (affirming 12(b)(1) dismissal based on a factual attack because plaintiff lacked standing).

MNABC argues that the Attorney General’s declaration does not “override” his statutory obligations. “[S]ome duty in regard to the enforcement” is not enough: *Ex parte Young* also requires the officer to “threaten and [be] about to commence proceedings.” 209 U.S. at 156. By ignoring this “about to commence proceedings” requirement, MNABC’s position effectively collapses the *Ex parte Young* exception to require only “some connection with the enforcement” of the Act.

Amicus refines MNABC’s argument, asserting that the imminence of enforcement proceedings is irrelevant at the motion to dismiss stage. See *Verizon Md., Inc. v. Pub. Serv. Comm’n of Md.*, 535 U.S. 635, 645 (2002) (“In determining whether the doctrine of *Ex parte Young* avoids an Eleventh Amendment bar to suit, a court *need only* conduct a ‘straightforward inquiry into whether the complaint alleges an ongoing violation of federal law and seeks relief properly characterized as prospective.’” (quotation omitted) (cleaned up)); *Whole Women’s Health*, 595 U.S. at 45 (official “who *may* . . . take enforcement actions” is proper *Ex parte Young* defendant (emphasis added)). This is true for facial attacks on jurisdiction where “the non-moving party receives the same protections as it would defending against a motion brought under Rule 12(b)(6).” *Carlsen v. GameStop, Inc.*, 833 F.3d 903,

¹Although this defendant was a private individual, the Fifth Circuit had held that his appeal was “inextricably intertwined” with the state defendants’ Eleventh Amendment immunity claims. *Whole Woman’s Health v. Jackson*, 13 F.4th 434, 447 (5th Cir. 2021) (per curiam). Before the Supreme Court, “no one contest[ed] this decision.” *Whole Woman’s Health*, 595 U.S. at 48. As the Eleventh Amendment provided appellate jurisdiction and the Supreme Court analyzed his defense in the same manner as other state defendants, we find the law apposite for a state officer.